

SALES AGREEMENT

This Sales Agreement (this “**Agreement**”) is entered into as of the this _____, by and among/between:

Seller(s): _____, located at _____ (collectively “Seller”) and

Buyer(s): _____, located at _____ (collectively “Buyer”).

Each Seller and Buyer may be referred to in this Agreement individually as a “Party” and collectively as the “Parties.”

1. Sale of Goods. Seller agrees to sell, and Buyer agrees to purchase the following items in the following quantities and at the prices (the “Goods”):

Other Details:

2. Purchase Price. Buyer will pay Seller for the Goods and all obligations specified in this Agreement, if any, as the complete purchase price, the sum of _____. Unless otherwise stated, (Check one)

Seller

Buyer

shall be responsible for all taxes concerning the purchase of Goods in this Agreement.

3. Payment. (Check one)

Send an invoice. Seller shall invoice Buyer upon the shipment of the Goods. Unless otherwise stated, payment for the Goods is due within _____ days of the date of the Seller's invoice, which date will not be before the date of the Seller's delivery of the Goods.

Late Fee (Check one)

A late payment fee will NOT be charged.

If Buyer fails to make a payment due under this Agreement within _____ days after the payment's due date, Buyer agrees to pay to Seller a late payment fee of _____ (Check one)

\$

%

of the amount due.

According to a schedule. Payment for the Goods will be by (Check one)

cash

credit or debit card

personal check

cashier's check

money order

credit or debit card

wire transfer

other: _____,

According to the following schedule: (Check all that apply)

Amount previously paid by the Buyer. \$ _____

_____ previously paid by Buyer.

Down payment. \$

upon the execution of this Agreement.

Payment for the Goods.

Full payment: \$

upon Buyer's acceptance of the Goods.

Installments: \$

on

, until the purchase price has

been paid in full.

4. Delivery. *(Check one)*

Seller will make the Goods available for Buyer pick-up on or before

Day of

, , at the following address:

Seller shall ship the Goods to Buyer on or before
the following address:

Day of

, , to

Shipping Cost *(Check one)*

Seller will pay for any shipping costs.

Buyer will pay for any shipping costs.

Right of Inspection *(Check one)*

It shall constitute an acceptance of delivery of the Goods once the Buyer has collected the Goods at the specified location.

It shall constitute an acceptance of delivery of the Goods once the Buyer has received the Goods at the specified location.

5. Risk of Loss. Title to and risk of loss of the Goods shall pass to Buyer upon: *(Check one)*

Shipment of the Goods under this Agreement.

Delivery of the Goods to the Buyer under this Agreement.

6. Right of Inspection. *(Check one)*

NO right to inspection. It shall constitute an acceptance of delivery of the Goods once the Buyer has received/collected the Goods at the specified location.

Buyer shall be allowed to examine the Goods once received and shall do so within days after the receipt of the Goods. In the event that Buyer discovers any damages, shortages, or other nonconformance of the Goods, Buyer shall notify Seller within days after receipt of the Goods, specifying the basis for its claim. Failure to notify Seller by such date shall constitute an acceptance of delivery of the Goods as is. In the event the Goods are non-conforming, Buyer may at its option:
(Check all that apply)

Return the Goods for a replacement, at the Seller's expense

Return the Goods at Seller's expense for a credit of the full purchase price on future transactions with Seller

Return the Goods at Seller's expense for a full refund of the purchase price

The above shall be the sole remedy of Buyer and only obligation of Seller with respect to any non-conforming Goods.

7. Warranties. *(Check one)*

NO warranties, selling the goods “as is.” Buyer acknowledges that it has not relied on, and Seller has not made, any representations or warranties with respect to the quality or condition of the Goods, and it is purchasing the Goods on an “as is” basis. Seller expressly disclaims all warranties, whether express or implied, including any implied warranty of merchantability or fitness.

YES, the seller provides warranties. Seller gives a day limited warranty from the date of delivery that the Goods are in good condition and shall be free from substantive defects. The warranty does not apply to any Goods that are damaged due to the misuse, abuse or negligence of any party other than Seller.

Other type of warranty:

8. Security Interest. Buyer hereby grants to Seller a security interest in the Goods until Buyer has paid Seller in full for the Goods. Buyer shall sign and deliver to Seller any document needed to perfect the security interest in the Goods that Seller reasonably requests.

9. Seller Representations and Warranties. Seller warrants that the goods are free, and at the time of delivery will be free, from any security interest or other lien or encumbrance. Seller warrants that there are no outstanding titles or claims of title hostile to the Seller’s rights in the Goods.

10. Force Majeure. Seller shall not be responsible for any claims or damages resulting from any delays in performance or non-performance due to unforeseen circumstances or causes beyond the Seller’s reasonable control.

11. Limitation of Liability. Seller will not be liable for any indirect, special, consequential, or punitive damages (including lost profits) arising out of or relating to this Agreement or the transactions it contemplates (whether for breach of contract, tort, negligence, or other form of action) and irrespective of whether Seller has been advised of the possibility of any such damage. In no event will Seller’s liability exceed the price paid by Buyer to Seller for the Goods giving rise to the claim or cause of action.

12. Assignment. *(Check one)*

SELLER needs permission to assign to a third party. Seller may not transfer any of its rights or delegate any responsibilities under this Agreement without prior written consent from the Buyer. Any attempt to assign rights or delegate responsibilities in violation of this section will be considered void.

BUYER needs permission to assign to a third party. Buyer may not transfer any of its rights or delegate any responsibilities under this Agreement without prior written consent from the Buyer. Any attempt to assign rights or delegate responsibilities in violation of this section will be considered void.

BOTH the Seller and the Buyer need permission to assign to a third party. Either Party may not assign any of its rights under this Agreement or delegate any responsibilities under this Agreement,

except with the prior written consent of the other Party. Any attempt to assign rights or delegate responsibilities in violation of this section will be considered void.

Either Party does NOT need permission to assign its rights to a third party.

13. Amendments. No amendment to this Agreement will be effective unless it is in writing and signed by both Parties.

14. Governing Law. The terms of this Agreement shall be governed by and construed under the laws of the State of _____, not including its conflicts of law provisions.

15. Disputes. Any dispute arising from this Agreement shall be resolved through: *(Check one)*
Court litigation. Disputes shall be resolved in the courts of the State of _____.
(Check if applicable)

If either Party brings legal action to enforce its rights under this Agreement, the prevailing party will be entitled to recover from the other Party its expenses (including reasonable attorneys' fees and costs) incurred in connection with the action and any appeal.

Binding arbitration. Binding arbitration shall be conducted by the rules of the American Arbitration Association.

Mediation.

Mediation, then binding arbitration. If the dispute cannot be resolved through mediation, then the dispute will be resolved through binding arbitration conducted in accordance with the rules of the American Arbitration Association.

16. Entire Agreement. This Agreement contains the entire understanding between the Parties and supersedes and cancels all prior agreements of the Parties, whether oral or written, with respect to such subject matter.

17. Notices. Any notice or other communication given or made to any Party under this Agreement shall be in writing and delivered by hand, sent by overnight courier service, or sent by certified or registered mail, return receipt requested, to the address stated above or to another address as that Party may subsequently designate by notice and shall be deemed given on the date of delivery.

18. Waiver. No Party shall be deemed to have waived any provision of this Agreement or the exercise of any rights held under this Agreement unless such waiver is made expressly and in writing. Waiver by any Party of a breach or violation of any provision of this Agreement shall not constitute a waiver of any other subsequent breach or violation.

19. Miscellaneous. This Agreement shall be binding upon and inure to the benefit of the Parties and their respective heirs, successors, and assigns. The provisions of this Agreement are severable. If any provision is held to be invalid or unenforceable, it shall not affect the validity or enforceability of any other provision. The section headings herein are for reference purposes only and

shall not otherwise affect the meaning, construction, or interpretation of any provision of this Agreement. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute the same document.

20. Other.

RIGHT TO CANCEL *(Check one)*

YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION.

THE BUYER DOES NOT HAVE THE STATUTORY RIGHT TO CANCEL THIS TRANSACTION.

IN WITNESS WHEREOF, the Parties have executed this agreement as of the date first written above.

Buyer

Seller

Buyer

Seller